

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

June 25, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #18 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 11, 2012. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Session of the Governing Body on June 19, 2012. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Collins each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and the Bicycle Station, Inc. respectively) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Collins returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership and transfer of location for a retail liquor license filed with the City Clerk's Office by Steamboat's LLC d/b/a Steamboat's Wyoming Steak and Smoke House, 1947 Dell Range Boulevard, Cheyenne, Wyoming (License currently held by Let 'er Buck Investment Group LLC d/b/a Steamboat's, (address not yet issued) to be located off Gardenia Drive between Yellowstone Road and El Camino Real in Cathedral Commons). Upon inquiry, James Yates, applicant member, confirmed the proposed new business location is the former Shari's restaurant building on Dell Range and provided information on the transfer of ownership, explaining that some of the partners in Steamboat's LLC are the same as those with Let 'er Buck Investment Group LLC. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Ordinance amending Ordinance No. 3925 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne. Reporting for Finance Committee, Mr.

Brown moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” -- all members of the governing body. (#3951)

Ordinance amending Ordinance No. 3926 defining the terms and conditions of employment for sworn officers of the City of Cheyenne Police Department. Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting “yes” -- all members of the governing body. (#3952)

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from HR-2 High Density Residential-Developing District to MR-2 Medium-Density Residential-Developing District for Lot 21, Block 14, Saddle Ridge, Cheyenne, Wyoming, to be known as a portion of Saddle Ridge, Fourth Filing (located at the southeast corner of the intersection of Whitney Road and Countryside Avenue). Reporting for Public Services Committee, Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body.

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from CB Community Business District to LI Light Industrial District for Lots 2, 3, and 4, Block 397, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Dillon Avenue and W. 17<sup>th</sup> Street). Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Comments followed regarding discussion held at the Public Services Committee meeting concerning whether a zoning condition should be considered with regard to outside storage. Discussion included the following topics: Expressions that a zoning condition would not be necessary; flexibility involving uses within the proposed LI zoned classification for the area; limited outside storage space impact to the neighborhood due to the building located on the site; PlanCheyenne and the downtown area; reconsidering the Unified Development Code as written; other LI zoned area(s) in the vicinity, and consistency with uses for businesses in the area. Motion carried. Voting “yes” -- all members of the governing body.

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of the North Half of the North Half of the Northeast Quarter of the Northeast Quarter of Section 11, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming (generally located at the I-25/I-80 Interchange, a.k.a. 4121 W. 5th Street). Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body.

Ordinance granting a Franchise by the City of Cheyenne to High West Energy, Inc., its successors and assigns, the right to furnish, sell and distribute electricity to the City and all persons, businesses, and industry within a portion of the City High West’s certificated territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof -- referred to Finance Committee (sponsors -- Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson).

Resolution approving the budget of the Downtown Development Authority for the Fiscal Year beginning July 1, 2012 and ending June 30, 2013 (postponed from 6/11/12). John Sundahl, President, Downtown Development Authority (DDA) Board, advised he was present to answer any questions, and requested approval of a substitute resolution/budget. Mr. Brown moved to adopt, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute, seconded by Mr. Pierson. It was noted the proposed substitute reflects a reduction in the amount of the overall proposed budget (from \$626,220.00 to \$621,370.00). Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#5403)

Resolution prioritizing the City of Cheyenne's 2012 applications for Mineral Royalty Capital Construction Grants. Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was advised the substitute clarifies the prioritization order, which was inadvertently listed in the wrong order on the initial resolution. Cindy Schneider, Grants Manager, reviewed the order of the prioritization of projects listed in the proposed substitute as follows: #1. East Pershing Blvd. Sanitary Sewer (Dunn to Converse Avenues), #2. Crow Creek Water Reclamation Facility Improvements, #3. Street & Alley Road Maintenance Facility Addition, Phase I, and #4. Snyder Avenue Sewer Rehabilitation Project (West 24<sup>th</sup> St. To West Pershing Blvd.). Motion to amend carried. Voting "yes" -- all members of the governing body. Upon inquiry, Tim Wilson, BOPU Director, briefly reviewed the Priority No. 4 project, clarifying it was a continuation of the Snyder Ave. and West Pershing Blvd. reconstruction project which will include replacement of part of the sewer line. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#5404)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Lincoln Addition, Second Filing, a replat of a portion of Tract B, Lincoln Addition, and abandoned WYDOT right-of-way being situated in a portion of Section 1, T.13N., R.67W., 6th P.M., Cheyenne, Wyoming (located north of and adjacent to West Lincolnway, between Westland Road and Stinson Avenue). Ms. Ash moved to adopt with staff recommendation #1, seconded by Dr. Rinne. Upon inquiry, Brett Walker, Development Office, stated the staff recommendation requires the applicant to submit a revised traffic impact study, which has already been done and is under review by the Engineer's office. Motion carried. Voting "yes" -- all members of the governing body. (#5405)

Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Mr. Brown moved to adopt, seconded by Mr. Spiker. Mr. Brown moved to amend by substitute, seconded by Mr. Spiker. It was advised the amendment increases the employee health insurance share program total payment amount from \$165,000.00 to \$181,000.00. Upon inquiry, Lois Huff, City Treasurer, advised the substitute was prepared based upon comments made at Finance Committee and explained the program which involves full-time employees during calendar year 2011, but not elected officials; health insurance savings during calendar year 2011 due to employee health wellness efforts to keep down premium costs, and eligibility provisions to receive a portion of the savings. Ms. Huff also provided information on employee health insurance savings realized during the budget process last year, noting \$65,000.00 of the amount saved is going toward the Employee Investment Study, and stated, if the substitute is approved, there will be approximately \$19,000 in savings remaining in the line item. It was clarified elected officials will not receive any payment, and that representatives for the Police Protective Association, Cheyenne Public Employees Association and the Firefighters local union were all contacted and in agreement with the proposal. Motion to amend carried. Voting

"yes" -- all members of the governing body. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#5406)

[CA] Resolution authorizing the submittal of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Clean Water State Revolving fund for an amount not to exceed \$5 million for the Crow Creek Reclamation Facility Improvements Project and authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to execute the application and all related loan documents -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Fourth Filing, a replat of Lots 1-19, 21 and 23, Block 14 and Lots 1-27, Block 15, Saddle Ridge, Cheyenne, Wyoming (located east of and adjacent to Whitney Road, between Laramie Street and Countryside Avenue) -- referred to Public Services Committee (sponsor -- Ms. Ash).

[CA] Resolution authorizing the submittal of an application to the Wyoming Water Development Commission for additional grant funding for the Southern Water Transmission Main - Phase II Project in an amount not to exceed \$4,261,200 and authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to execute the application and all related documents -- referred to Finance Committee (sponsors -- Mr. Brown, Mr. Pierson, Mr. Valdez).

[CA] Resolution authorizing the Mayor to enter into negotiations for the purchase of Lot 1, Block 1, Marriott Subdivision, located near the intersection of West Lincolnway and Capitol Avenue, Cheyenne, Wyoming -- referred to Finance Committee (sponsors -- Ms. Ash, Mr. Brown, Mr. Collins, Mr. Pierson).

[CA] Resolution authorizing the Mayor and City Clerk to enter into cooperative and other agreements as necessary to enable the City of Cheyenne to join with other participating Wyoming Municipalities in an application for State Small Business Credit Initiative funds available from the United States Department of Treasury pursuant to the Small Business Jobs Act of 2010, and repealing Resolution No. 5317 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, regarding funding for the provision of Youth Alternatives Prevention Program services. Motion (per Consent Agenda) carried. (#5867)

[CA] Agreement between the City of Cheyenne and Bill G. Hibbler for professional legal counsel assistance -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne/Laramie County Corporation for Economic Development (LEADS) for industrial and economic development services -- referred to Finance Committee.

[CA] State Lease Agreement No. 8-09466 between the City of Cheyenne and the State of Wyoming, Department of Administration and Information, Construction Management, for rental of parking spaces located at the Cox Parking Structure -- referred to Finance Committee.

[CA] Consideration of Grant Agreement for FAA Airport Improvement Program Project No. 3-56-0005-47 between the City of Cheyenne, County of Laramie, Cheyenne Regional Airport Board

and the Federal Aviation Administration in an amount not to exceed \$4.7 million for taxiway rehabilitation -- referred to Finance Committee.

[CA] Use Agreement between the City of Cheyenne and Sierra Trading Post, Inc., to permit limited use of the public right-of-way for the installation of fiber optics, and setting a fee -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Animal Shelter/Services for animal shelter services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Animal Shelter/Services for animal control services -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Peak Wellness Center, Inc., Alcohol Receiving Center, for certain human services in the community -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority, for certain human services in the community -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, for Juvenile Diversion Program services -- referred to Finance Committee.

[CA] Juvenile Accountability Block Grant Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, for partial funding of Municipal Juvenile Court staffing and services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Stride Learning Center to provide cooperative transit services -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No. 1 for School Resource Officers, for the 2012 - 2013 school year -- referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 4173, Software License Agreement, between the City of Cheyenne, Cheyenne Police Department, and New World Systems Corporation for additional services involving field reporting software licensing and maintenance. Motion (per Consent Agenda) carried (amount not to exceed \$200,200.00).

[CA] Consideration of Bid #R-41-12 for furnishing 66 new Glock pistols and to trade-in 66 surplus pistols for the City of Cheyenne Police Department. Motion (per Consent Agenda) carried (accepted bid from Pro Force Enforcement, Prescott, AZ (amount not to exceed \$9,834.00, including trade-ins).

[CA] Consideration of Bid #M-20-12 for a contract between the City of Cheyenne, Parks and Recreation Department, and S&S Builders, LLC, Cheyenne, Wyoming, for Holliday Park Connector Project (2007-2010, 2011-2014 1% Sales Tax & 1% Specific Purpose Tax). Motion (per Consent Agenda) carried (amount not to exceed \$1,460,646.70). (#5868)

[CA] Consideration of Bid #R-43-12 for furnishing 12 police vehicles for the Police Department from Spradley Barr Motors, Cheyenne, Wyoming (partial 2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-1-13 for furnishing and installing 70 new Panasonic Arbitrator cameras with supporting equipment for the Cheyenne Police Department (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-44-12 for furnishing 22 vehicles for City Departments from Wolf Auto Group (16), Pinedale, Wyoming, and Spradley Barr Motors (6), Cheyenne, Wyoming (partial 2011-2014 1% Sales Tax) -- referred to Finance Committee.

Appointments of Robert J. Walker to the Community Action of Laramie County Board and Scott Cowley to the Cheyenne-Laramie County Economic Development Joint Powers Board. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Re-Appointments of Betsy Putnam, Dr. Richard Berry and Ronn Jeffrey to the Laramie County Juvenile Services Joint Powers Board. Mr. Collins moved to approve, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held July 9, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk's Office for 2 Doors Down 2, Inc. d/b/a 2 Doors Down 2, 1802 Dell Range Boulevard, Suite 2, Cheyenne, Wyoming.

Announcement was made of the Appointment of Brandon Kramer to the the Downtown Development Authority Board to be confirmed July 9, 2012.

Announcement was made that two Calcuttas, benefitting the Cheyenne Frontier Days Scholarship Program, will be held as follows: Thursday, July 19, 2012 beginning at 7:00 p.m. at The Redwood Lounge, 2105 East Lincolnway, in conjunction with the Cheyenne Frontier Days Wild Horse Races to be held July 21-29, 2012 at Frontier Park, and Saturday, July 28, 2012 beginning at 8:00 p.m. at the Redwood Lounge, 2105 East Lincolnway, in conjunction with the Cheyenne Frontier Days Wild Horse Race to be held July 29, 2012 at Frontier Park, Cheyenne, Wyoming, in conjunction with the 2012 Cheyenne Frontier Days celebration (15% of proceeds to CFD Scholarship Program).

Announcement was made that the local Wyoming Chapter for Multiple Sclerosis (MS) will be sponsoring a Calcutta to be held Thursday, August 16, 2012 beginning at 6:00 p.m. at Alf's Pub and Package Liquor, 1622 East 19th Street, Cheyenne, Wyoming, in conjunction with the MS Society/Alf's Pub Golf Tournament (15% of proceeds to benefit the local MS Society).

Under other business, Larry Proietti expressed concerns regarding a political candidate signboard displayed in Lions Park during the Superday event on June 23rd). Upon request, Rick Parish, Parks and Recreation Director, advised the vehicle that had the signboard displayed was a

participant in the Superday auto show event, not the assigned political candidate area, and staff was not aware of the display until after it had been erected in the bed of the vehicle after parking in the assigned site, at which time the individual was asked to remove the sign.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:42 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle  
July 6, 2012